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Case Number: 25SMCV05606 Hearing Date: August 4, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

SAM MAZJ,

Plaintiff,

v.

GABRIEL BILLINGSLEY, et al.,

Defendants.

Case No.: 25SMCV05606

Consolidated with: Case No. 25STCV31611

Hearing Date: August 4, 2026

[TENTATIVE] order RE:

defendant'S DEMURRER TO

THIRD AMENDED COMPLAINT

BACKGROUND

This case arises from a landlord-tenant dispute relating to alleged asbestos contamination in a rented unit. Plaintiff Sam Mazj and Defendant Gabriel Billingsley entered into a written lease agreement (the "Lease") for property located at 969 Hilgard Avenue, Unit 1108, Los Angeles, California 90024 (the "Property"). Plaintiff SCK Holding LLC holds title to the Property.

According to Plaintiffs, before leasing the Property to Defendant, the Property was inspected and the seller's disclosures and visual inspections did not disclose asbestos contamination or any visually identifiable contaminant in the unit. Further, page 4 of the Lease ("Premises Condition") states that Defendant had the right to inspect the premises before signing, had the opportunity to conduct whatever inspection was needed before signing, acknowledged that the premises were satisfactory, and further acknowledged upon taking possession that the premises were clean, safe, sanitary, and in good-working condition.

On or about September 2025, after approximately two years of tenancy, Defendant stopped paying rent, retained counsel, and claimed that he was suffering breathing issues and that the Property was contaminated with asbestos. Without Plaintiffs' prior written consent, and contrary to the terms of the Lease, Defendant hired, caused to be hired, or allowed one or more third-party persons to inspect and/or test for contamination inside the Property. During that process, the HVAC access screen was removed and powder-like particulate matter was spread or allowed to spread inside the unit.

Upon receiving notice of Defendant's contamination claim, Plaintiffs promptly retained KB Environmental, Inc., a licensed abatement contractor, who completed abatement work on or about October 1, 2025. After the abatement work, Environmental Clean Air performed post-abatement clearance testing and issued a clearance stating that the dwelling was clear and compliant and that no asbestos hazard remained.

After that clearance, Defendant and/or persons acting at his direction again arranged for unauthorized inspection or testing and again asserted that the Property remained contaminated. Defendant claimed he could not reside at the Property, although Plaintiff claims Defendant actually continued to occupy the Property.

Plaintiffs twice sought access to re-inspect and address Defendant's renewed allegations, but Defendant refused access and refused to cooperate, notwithstanding the Right of Entry provision of the Lease. (Exh. 1, Lease p. 10.) The Right of Entry provision states that Landlord may enter at reasonable hours to inspect and make repairs, that Resident may not interfere with Landlord's entry for such purposes, and that if Resident restricts Landlord's access Resident may be responsible for the resulting costs. (Exh. 1, Lease p. 10.)

Plaintiffs claim they were advised that the post-clearance reappearance of particulate matter could not have occurred absent further manipulation, disturbance, spreading, or reintroduction of material after the initial abatement. Plaintiffs claim they suffered damages including unpaid rent, abatement and testing costs, consultation expenses, HVAC-related remediation expenses, attorney's fees and costs recoverable under the Lease, loss of use, diminution in value, and stigma damages.

The second amended complaint alleged claims for (1) Breach of Written Lease Agreement, (2) Express Contractual Indemnity, (3) Waste, (4) Private Nuisance, (5) Negligence, (6) Intentional Misrepresentation, (7) Negligent Misrepresentation, and (8) Intentional Infliction of Emotional Distress ("IIED").

The Court previously sustained a demurrer to the waste and IIED claims. As to the waste claim, the Court held that Plaintiffs had not alleged that Defendant's actions caused a substantial, permanent depreciation in the market value of the Property. As to the IIED claim, the Court concluded that Plaintiffs had not sufficiently alleged severe emotional distress. Plaintiffs have now filed a third amended complaint ("TAC") which purports to cure the defects noted in the Court's prior order.

This hearing is on Defendant's demurrer to the TAC. Defendant argues that (1) both the waste and IIED claims are uncertain, ambiguous and unintelligible, (2) Plaintiffs have not alleged substantial and permanent injury to their Property and their

claims of stigma or possible disclosure obligations to potential buyers are speculative, and (3) Mr. Mazj has not alleged severe emotional distress and his new allegations are simply repackaged versions of his old claims.

MEET AND CONFER

Code Civ. Proc. § 430.41 requires that before the filing of a demurrer the moving party “shall meet and confer in person or by telephone” with the party who filed the pleading that is subject to demurrer for the purpose of determining whether an agreement can be reached that would resolve the objections to be raised in the demurrer. (Code Civ. Proc. § 430.41(a).) The parties are to meet and confer at least five days before the date the responsive pleading is due. (Code Civ. Proc. § 430.41(a)(2).) Thereafter, the moving party shall file and serve a declaration detailing their meet and confer efforts. (Code Civ. Proc. § 430.41(a)(3).) Defendant’s counsel, Sevag Simonian, attests that he met and conferred with Plaintiffs’ counsel on May 26, 2026. This satisfies Defendant’s meet and confer obligations.

LEGAL STANDARD

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994 (in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents).) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Leave to amend must be allowed where there is a reasonable possibility of successful amendment. (See Goodman v. Kennedy (1976) 18 Cal.3d 335, 349 (court shall not “sustain a demurrer without leave to amend if there is any reasonable possibility that the defect can be cured by amendment”); Kong v. City of Hawaiian Gardens Redevelopment Agency (2002) 108 Cal.App.4th 1028, 1037 (“A demurrer should not be sustained without leave to amend if the complaint, liberally construed, can state a cause of action under any theory or if there is a reasonable possibility the defect can be cured by amendment.”). The burden is on the complainant to show the Court that a pleading can be amended successfully. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318.)

DISCUSSION

Uncertainty

Defendant argues that the waste and IIED claims are uncertain, ambiguous and unintelligible because they rely on conclusory allegations. The Court disagrees.

Special demurrers based on uncertainty are rarely sustained, except in cases where the complaint is so bad that defendant cannot reasonably respond—i.e., he or she cannot reasonably determine what issues must be admitted or denied, or what counts or claims are directed against him or her. (Khoury v. Maly’s of Calif., Inc. (1993) 14 Cal.App.4th 612, 616.) Here, Plaintiffs’ allegations are not so incomprehensible that Defendant is unable to determine what claims are being made against him.

Defendant’s contention that the TAC is filled with conclusory allegations is not a proper basis for a demurrer based on uncertainty. “A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading, but is directed at the uncertainty existing in the allegations actually made.” (Butler v. Sequeira (1950) 100 Cal.App.2d 143, 145-146.)

Waste

Defendant argues that Plaintiffs continue to fail to allege how the alleged waste caused a substantial and permanent depreciation in the market value of the Property. The Court agrees.

To assert a claim of waste, a plaintiff must prove the defendant is under a duty to preserve and protect the property involved. (Schellinger Brothers v. Cotter (2016) 2 Cal.App.5th 984, 1000.) Additionally, a plaintiff must show that the damage to the property was sufficiently substantial and permanent to cause injury to its interest in the property. (Avalon Pacific-Santa Ana, L.P. v. HD Supply Repair & Remodel, LLC (2011) 192 Cal.App.4th 1183, 1213.) In particular, damage is only deemed substantial and permanent if there is a “substantial depreciation in the market value” of the property. (Smith v. Cap Concrete, Inc. (1982) 133 Cal.App.3d 769, 776.)

The TAC alleges that “Defendant’s acts and omissions also caused a permanent or enduring impairment to the Property’s value and marketability because the subject Property now has a purported contamination-claim, that may be discoverable in insurer’s claims database. This creates in Plaintiff, a duty to disclose the purported asbestos contamination claim to future prospective buyers, abatement, reinspection, and remediation history associated with asbestos allegations and post-clearance reappearance of particulate matter. That history impairs the Property’s marketability in a significant manner, and must be addressed in future leasing, sale, disclosure, insurance, and valuation contexts, and causes reasonable purchasers, tenants, lenders, insurers, brokers, and property professionals to discount the Property compared to a comparable unit without such contamination history. The stigma attached to such an outlandish asbestos claim, may result in significant price reductions of real property once the property is listed for sale.”

These allegations do not indicate that there is a substantial diminution in the market value of the Property, only that there is a hypothetical one which may occur in the future. The TAC also refers to other damages related to “loss of use, lost rent, abatement expenses, clearance and reinspection costs, HVAC-related remediation expenses, expert and consultation expenses, and other consequential damages.” These damages are not a permanent injury to the Property, and therefore, they do not support a waste claim. The Court also notes that as to Mr. Mazj, he does not own the property nor is there any allegation that he has a vested interest in the Property, so he has not shown how he has standing to sue for waste of the Property. Accordingly, the Court concludes that the TAC still fails to state a waste claim, and the Court sustains the demurrer to the waste claim with 20 days’ leave to amend.

IIED

Defendant argues that the IIED claim fails because Defendant’s alleged actions are not extreme or outrageous, and the TAC does not sufficiently allege severe emotional distress or intent to cause distress. The Court agrees in part.

A cause of action for IIED exists where there is “(1) extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; (2) the plaintiff’s suffering severe or extreme emotional distress; and (3) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1050-1051.)

Conduct is only “extreme and outrageous” when it is “so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (Davidson v. City of Westminster (1982) 32 Cal. 3d 197.) “Where reasonable men may differ, it is for the jury, subject to the control of the court, to determine whether, in the particular case, the conduct has been sufficiently extreme and outrageous as to result in liability.” (Alcon v. Ambro Engineering, Inc. (1970) 2 Cal.3d 493, 499.) Conduct is considered extreme and outrageous if when recited “to an average member of the community [c]ould arouse his resentment against the actor, and lead him to exclaim, ‘Outrageous!’” (KOV-TV, Inc. v. Superior Court (1995) 31 Cal.App.4th 1023, 1028.)

Here, the Court has already concluded that Mr. Mazj sufficiently alleged a claim for fraud, and fraud can constitute extreme and outrageous conduct. Accordingly, the Court rejects the argument that Mr. Mazj has not sufficiently alleged extreme and

outrageous conduct.

As to severe emotional distress, the TAC now alleges that “Mazj experienced persistent insomnia, repeated waking during the night, it affected his concentration as a physician and his ordinary work and personal obligations, recurring fear that the Property would be permanently stigmatized or financially impaired, physical tension, headaches, loss of appetite, emotional agitation, and continuing distress caused [sic] Defendant’s accusations, refusal of access, monetary demand, and continuing interference with the Property.”

It further alleges that “Mazj’s distress was severe because it persisted over time, interfered with his sleep, concentration, business affairs, and ordinary daily functioning, and was not limited to temporary irritation, worry, or annoyance. To his embarrassment, Mazj an oncologist by profession, has been forced to seek the assistance of a licensed psychologist to coup [sic] with the resulting anxieties, which distracts him from his profession. He was forced to devote substantial time, effort, and resources distraction to responding to Defendant’s accusations, arranging abatement and testing, attempting to obtain access, responding to Defendant’s monetary demand, and addressing the risk of continuing harm to the Property and to Mazj’s reputation and financial interests.”

The Court concludes that these new allegations do not sufficiently state “emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it.” (Hughes v. Pair (2009) 46 Cal.4th 1035, 1051.) In Hughes, the plaintiff sued a trustee for, among other things, intentional infliction of emotional distress, alleging that he made sexually explicit, offensive, and threatening comments, in effect, demanding sex if she wanted her request for funds from the trust to be granted. (Id. at 1040.) In upholding summary judgment against her, the court concluded that the plaintiff’s allegations that “she has suffered discomfort, worry, anxiety, upset stomach, concern, and agitation” as a result of the defendant’s conduct “do not comprise emotional distress of such substantial quality or enduring quality that no reasonable [person] in civilized society should be expected to endure it.” [Citation.]” (Id. at 1051; compare with Saari v. Jongordon Corp. (1992) 5 Cal.App.4th 797 [complete disruption of life and diagnosis of depression]; Kelly-Zurian v. Wohl Shoe Co. (1994) 22 Cal.App.4th 397 [anxiety, tightness in chest, heart palpitations, panic attacks, depression, insomnia, and diagnosis of posttraumatic stress disorder].)

Here, Mr. Mazj’s allegations of emotional distress are no different than the ones the Supreme Court found to be insufficient in Hughes. His distress does not appear to be substantial enough for purposes of asserting an IIED claim. They stem from the normal reactions of someone engaged in a business or litigation dispute. Accordingly, the Court sustains the demurrer to the IIED claim without leave to amend.

CONCLUSION AND ORDER

Based on the foregoing, the Court SUSTAINS the demurrer to the waste claim with 20 days’ leave to amend and to the IIED claim without leave to amend.

IT IS SO ORDERED.

DATED: August 4, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court